

23CHCV02211 23CHCV02211

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23CHCV02211 Hearing Date: July 14, 2026 Dept: F49

Dept. F49

Date: 7/14/26

Case Name: Jose Antonio Mesa-Marentes, et al. v. JCC
Logistics, Inc., et al.

Case No. 23CHCV02211

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 14, 2026

MOTION FOR SUMMARY
JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Los Angeles Superior
Court Case No. 23CHCV02211

Motion filed: 4/2/26

MOVING PARTY: Defendant County of Los Angeles

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Defendant County of Los Angeles' motion for summary judgment, or in the alternative, summary adjudication as to Plaintiff's First Amended Complaint.

TENTATIVE RULING: The Motion is GRANTED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Jose Antonio Mesa-Marentes ("Marentes") in a motor vehicle accident. On July 26, 2023, Plaintiffs Marentes and Maria Guadalupe Esquivel-Carreon ("Esquivel-Carreon") (collectively, "Plaintiffs") initiated this action. On February 2, 2024, Plaintiffs filed the operative First Amended Complaint ("FAC") against Defendants JCC Logistics, Inc. ("JCC"), Steven Bloberg ("Bloberg"), CFJ Properties ("CFJ"), Tujhmm Inc. ("Tujhmm"), City of Lebec ("Lebec"), County of Kern, the State of California (the "State"), County of Los Angeles ("County of LA"), the State of California Department of Transportation ("DOT"), Caltrans, Pilot Travel Centers, LLC, and Does 1 to 100, alleging the following causes of action: (1) motor vehicle negligence, (2) negligent entrustment of a motor vehicle, (3) general negligence, (4) dangerous condition of public property, and (5) loss of consortium. At the request of Plaintiffs, the State, DOT, Caltrans, Lebec, and CFJ have since been dismissed from the action.

On April 2, 2026, County of LA filed the instant Motion for Summary Judgment, or in the Alternative, Summary Adjudication (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c(a)(1).)

“The

motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.”

(Code Civ. Proc., § 437c, subd. (c).)¿

A

party may alternatively seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. (Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication ... shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).)

The

moving party “bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) To meet that burden, the moving party must present evidence sufficient to show they are entitled to summary judgment as a matter of law. (Code Civ. Proc., § 437c, subds. (c) & (f)(2); Monticello Ins. Co. v. Essex Ins. Co. (2008) 162 Cal.App.4th 1376, 1385.)

“In

order to prevail on a motion for summary judgment, a defendant must either disprove an essential element of the plaintiff’s cause of action or prove an affirmative defense that would bar such cause of action.” (Velasquez v. Truck Insurance Exchange (1991) 1 Cal.App.4th 712, 717.)

The

pleadings serve as the “outer measure of materiality” in a summary judgment motion, delimiting the scope of the issues that may be triable. (FPI Development, Inc. v. Nakashima (1991), 231 Cal.App.3d 367, 381.)

A.

County of LA's Motion for Summary Judgment

Plaintiffs allege two causes of action

against County of LA: (1) dangerous condition of public property, and (2) loss of consortium. (FAC, ¶¶ 41-67.)

(1)

Dangerous Condition of Public Property

Public entities are generally immune

from liability from tort claims unless the claims are expressly authorized by law. (Gov. Code., § 815, subd. (a).) Liability for the dangerous condition of public property is governed by Government Code sections 830 et seq. (See *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 108 ["Section 835 ... 'sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property.'"].)

"[A] public entity is liable for injury

caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Gov. Code, § 835.)

For a public entity to be liable, the

property must be "real or personal property owned or controlled by the public entity." (Gov. Code, § 830, subd. (c).) Easements, encroachments, and other property that are located on the property of a public entity but not owned or controlled by the entity are not public property. (Ibid.) An essential prerequisite to a cause of action for dangerous condition of public property is thus that the public entity against whom the cause of action is alleged own or control the property claimed to be in a dangerous condition.

County of LA contends that Plaintiff cannot establish such ownership or control. County of LA has the initial burden of producing evidence on this issue.

Plaintiffs do not oppose the Motion. On July 2, 2026, Plaintiff filed a stipulation executed by counsel for Plaintiffs and counsel for County of LA indicating that the parties agreed that Plaintiff would not file an Opposition to the Motion and County of LA would waive costs and attorney fees incurred in the action. (Stipulation, July 1, 2026, at p. 2.)

The undisputed facts thus establish that: (1) the roadway where the accident occurred was acquired from County of LA by County of Kern in the Frazier Mountain Park Road 1977 Joint Powers Agreement (the "Agreement"); (2) the Agreement establishes that County of Kern expressly assumed full maintenance, control, and jurisdiction over the roadway; (3) at the time of the accident, County of Kern was responsible for maintaining and inspecting the roadway; (4) County of Kern did conduct routine inspections of the roadway; and (5) striping and signage for the roadway is maintained by County of Kern's maintenance program. (Undisputed Material Fact ("UMF") Nos. 10-13, 15-18.)

Based on the foregoing, the Court finds that County of LA has met its initial burden of producing evidence showing that it did not own or control the roadway where the accident occurred. This is sufficient to shift the burden to Plaintiffs to produce evidence establishing a triable issue of material fact. Plaintiffs have not submitted evidence in opposition. The Court thus finds that County of LA is entitled to judgment as a matter of law on Plaintiffs' cause of action for dangerous condition of public property.

(2)

Loss of Consortium

The loss of consortium claim asserted by Esquivel-Carreón against County of LA is predicated upon County of LA's liability for the injuries to Marentes. (FAC, ¶¶ 64-65.) This derivative claim accordingly stands or falls with the cause of action for dangerous condition of public property. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 746 ["A cause of action for loss of consortium is, by its nature, dependent on the existence of a cause of action for tortious injury to a spouse."].)

Because County of LA has established entitlement to judgment on the cause of action for dangerous condition of public property, it is also entitled to judgment on the cause of action for loss of consortium.

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS Defendant County of Los Angeles' motion for summary judgment.

Moving party to give notice.